

25STCV08308 25STCV08308

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Case Number: 25STCV08308 Hearing Date: August 28, 2026 Dept: 510

No. 7 - Quan Ding, et al. v. FCA US, LLC, et al.

Defendants FCA US, LLC, and JRDTSP LLC deb Scott Robinson Chrysler Dodge Jeep Ram's Motion to Dismiss

Defendants FCA US, LLC, and JRDTSP LLC dba Scott Robinson Chrysler Dodge Jeep Ram move to dismiss Plaintiffs' entire first amended complaint ("FAC") under Code of Civil Procedure section 581(f)(2).

On February 3, 2026, the Court sustained Defendant FCA US, LLC's demurrer to Plaintiffs' first and second causes of action as alleged in their FAC with 21 days' leave to amend. The Court overruled FCA's demurrer as to the third, fourth, fifth, and sixth causes of action.

Under Code of Civil Procedure section 581(f)(2): "The court may dismiss the complaint . . . after a demurrer to the complaint is sustained with leave to amend, the plaintiff fails to amend it within the time allowed by the court and either party moves for dismissal." (CCP § 581(f)(2) [emphasis added].) Here, the Court did not sustain the demurrer as to the entire complaint. There is no statutory basis to dismiss claims on which the demurrer was overruled. The Court will not dismiss Plaintiffs' entire action for failure to amend two of its claims.

In opposition, Plaintiffs request the Court deny dismissal of the first and second causes of action on the grounds that the rationale guiding the Court's ruling on demurrer is currently under appellate review in a separate case. This argument misunderstands the Court's ruling and its consequences. The Court sustained the demurrer as to these claims with 21 days' leave to amend. Plaintiffs did not file an amended complaint within the time allotted. Therefore, these claims are no longer operative in this action. This is due to Plaintiff's inaction, not any action by the Court.

Disposition

Defendants FCA US, LLC, and JRDTSP LLC dba Scott Robinson Chrysler Dodge Jeep Ram's motion to dismiss is denied.